

Jeb Bush
Governor

Department of Environmental Protection

Northwest District
160 Governmental Center
Pensacola, Florida 32501-5794

December 23, 1999

Jacobsen

David B. Struhs
Secretary

CERTIFIED MAIL NO. Z 011 537 999
RETURN RECEIPT REQUESTED

Ms. Kathy Sloan, Vice President
Dolomite, Inc.
P.O. Box 1568
Marianna, FL 32447

SUBJECT: Warning Letter #NWIW 32-1354
Wastewater Permit No. FL0101192

Dear Ms. Sloan:

The purpose of this letter is to advise you of possible violations of law for which you may be responsible, and to seek your cooperation in resolving the matter. A field inspection conducted at the Dolomite, Inc. mining facility in Marianna, Florida, on October 13, 1999, indicates that a violation of Florida Statutes and Rules may exist. A copy of the report from the field inspection is attached. Department of Environmental Protection personnel observed the following at the above-described facility:

The facility was discharging from the old mining quarry into Rock Creek through an unpermitted discharge point located south of the administration building. The facility has only one approved discharge to surface waters via D001 to the Chipola River.

A discharge point from the old mining quarry was not included in the permit renewal application that was submitted to the Department on August 28, 1997 or subsequent documentation submitted in support of the permit renewal.

Section 403.161(1)(b), Florida Statutes (F.S.), and Chapter 62-4.030, Florida Administrative Codes (F.A.C.), provide that it is a violation to fail to comply with any rule, regulation, order, permit, or certificate adopted or issued by the Department pursuant to its lawful authority.

Section 62-620.610(2), F.A.C., provides that a permit is only valid for the specific processes and operations applied for and indicated in approved drawings or exhibits. Any unauthorized deviations from the approved drawings, exhibits, specifications, or conditions of issued permit constitute grounds for revocation and enforcement action by the Department.

"More Protection, Less Process"

Printed on recycled paper.

Section 62-620.300(5), F.A.C., states that a permitted industrial or domestic wastewater facility or activity shall not be operated, maintained, constructed, expanded or modified in a manner that is inconsistent with the terms of the permit.

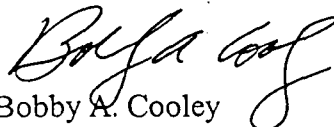
Section 62-620.610 (22)(a), F.A.C., provides that bypass of any portion of a treatment works is prohibited, and the Department may take enforcement action against a permittee for bypass.

The activities observed during the Department's field inspection and any other activities at your facility that may be contributing to violations of the above-described statutes or rules should be ceased.

You are requested to contact Barbara Ruth at (850) 595-8300, extension 1153, within fifteen (15) days of receipt of this Warning Letter to arrange a meeting to discuss this matter. The Department is interested in reviewing any facts you may have that will assist in determining whether any violations have occurred. You may bring anyone with you to the meeting that you feel could help resolve this matter.

Please be advised that this Warning Letter is part of an agency investigation, preliminary to agency action in accordance with Section 120.57(4), Florida Statutes. We look forward to your cooperation in completing the investigation and resolution of this matter.

Sincerely,



Bobby A. Cooley
Director of District Management

BAC:ens

Attachment

Cc: Steve Kelly, PCBO
Ilia Herrera

FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION

WASTEWATER COMPLIANCE INSPECTION REPORT

FACILITY AND INSPECTION INFORMATION

@ = Optional

Name and Physical Location of Facility Dolomite, Inc. 1321 Highway 71 Marianna, Florida 32448	WAFR ID: FL0101192	County Jackson (32) Phone (850) 482-5570	Entry Date/Time 10/13/99 1400 @ Exit Date/Time 10/13/99 -1530
Name(s) of Field Representatives(s) Mr. David Thompson	Title Plant Manager	Phone (850) 482-5570	
Name and Address of Permittee or Designated Representative Dolomite, Inc. c/o Ms. Kathy Sloan Post Office Box 1568, Marianna, Florida 32447	Title Vice President	Phone (850) 482-5570	@ Operator Certification # N/A

Inspection Type	☐ C ☐ E ☐ I	Samples Taken(Y/N): Yes	@ Sample ID#: N/A	Samples Split (Y/N): N/A
☐ Domestic	☒ Industrial	Were Photos Taken(Y/N): No	@ Log book Volume : Volume II	@ Page 92

FACILITY COMPLIANCE AREAS EVALUATED

S=Satisfactory; M=Minor; U=Unsatisfactory; Blank=Not Evaluated

Unsatisfactory Ratings in Areas Marked by a "Diamond (♦)" Will Always put the Facility Status in Significant Non-Compliance

PERMIT/ORDERS	SEWAGE TREATMENT	FACILITY OPERATIONS	WASTEWATER DISCHARGE
S 1. ♦ Permit	3. Laboratory	S 6. Facility Site Review	S 9. ♦ Effluent
2. ♦ Compliance Schedules	S 4. Sampling	7. Flow Measurement	U 10. ♦ Disposal
	S 5. ♦ Records & Reports	S 8. ♦ Operation & Maintenance	11. Residuals Management
13. Other:			12. Groundwater

Facility and/or Order Compliance Status:	☐ In-Compliance	☐ Minor-Out-Of-Compliance	☒ Significant-Out-Of-Compliance
Recommended Actions See Attached Inspection Report			

Name(s) and Signature(s) of Inspector(s) Steven Kelly <i>Steven Kelly</i>	District Office/Phone Number NWD-PCBO (850) 872-4375	Date 11/15/99
@ Signature of Reviewer Henry Hernandez <i>Henry Hernandez</i>	District Office/Phone Number NWD-PCBO (850) 872-4375	Date 11-16-99

Fill Out This Section For All Surface Water Discharger Inspections (CEI, CSI, CBI, PAI, XSI, RI)

Transaction Code	NPDES Number	YR/MO/DA	Insp Type	Inspector	Fac Type
N S F L 0 1 0 1 1 9 2	9 9 1 0 1 3	1 C	S	2	

ADDITIONAL NPDES COMMENTS

Inspection Type (Field 1) A=PAI, B=CBI, C=CEI, S=CSI, X=XSI, R=RI
Inspection Code (Field 2): S=State, J=Joint EPA/State-EPA Lead, T=Joint State/EPA-State Lead, L=Local Program
Facility Type (Field 3): 1=Municipal (Publicly Owned), 2=Industrial and Privately Owned Domestic, 3= Agricultural, 4=Federal
Every other field is self explanatory

INSPECTION COMMENTS

PERMITS/ORDERS

1. PERMIT: Satisfactory.

Permit Number: FL0101192-001-IW3S

Date Issued: May 29, 1998

Expiration Date: May 28, 2003

The facility operates under FDEP Permit Number FL0101192-001-IW3S. The Permit was issued on May 29, 1999, for the operation of a dolomite mining facility. The Permit was modified on July 02, 1998, to correct a typographical error in Section I.A.1 that listed the wrong monitoring requirements for the facility.

The wastewater associated from the facility is generated as a result of natural springs feeding water into the areas where dolomite is mined. The wastewater flows into a lake which serves as a sedimentation basin to a series of three rip-rap turbidity barriers and then through a floating silt barrier prior to discharging into the Chipola River. The facility also has a rock washing operation that sorts the mined dolomite into different particle sizes. Process water from the rock-washing operation is collected in two sediment ponds and reused in the rock washing process. Sediment from the operation is dried and sold as agricultural lime.

2. COMPLIANCE SCHEDULE: Not Applicable.

SELF MONITORING PROGRAM

3. LABORATORY: Not Evaluated.

4. SAMPLING: Satisfactory.

The facility appears to be sampling for the proper parameters in accordance with the frequency and location outlined in FDEP Permit Number FL0101192-001-IW3S.

5. RECORDS AND REPORTS: Satisfactory.

A.. A review of the Discharge Monitoring Reports for the past 9 months (January 1999 – September 1999) did not reveal any deficiencies. All compliance samples were within permitted limitations.

* A comprehensive sampling log for pH must be maintained. At a minimum, the log should include the location (background or effluent), date, time, sample result, and the name of the individual sampler. In addition, a daily standardization log for the pH meter must be maintained. This log should include the date, at a minimum two pH buffers and the name of the sampling technician.

FACILITY OPERATIONS

6. FACILITY SITE REVIEW: Satisfactory.

No problems or deficiencies were observed. The inspection was conducted in response to complaints concerning a turbid discharge from the Dolomite, Inc. facility. At the time of the inspection, excessive turbidity was not observed in the area. The turbidity problem was attributed to sediment runoff from private farmland along Rocky Creek.

7. FLOW MEASUREMENT: Not Evaluated.

8. OPERATION AND MAINTENANCE: Satisfactory.

All treatment units including the rip-rap and the floating silt barriers were in place and operating in a satisfactory manner at the time of the inspection. No problems or deficiencies were observed.

EFFLUENT/DISPOSAL

9. *EFFLUENT*: Satisfactory.

The final effluent was sampled for pH and turbidity.

Background (Chipola River): pH 7.68 su	Turbidity: 5.0 NTU
Effluent: pH 8.32 su	Turbidity: 8.0 NTU

10. *DISPOSAL*: Unsatisfactory.

FDEP Permit Number FL0101192-001-IW3S only authorizes the discharge to the Chipola River through a 60" culvert, referred to as discharge point D001. An additional continuous discharge was discovered during the inspection. The second discharge point was located south of the administration building in the "old mining quarry". Mr. Thompson described the discharge as a continuous spring-fed discharge from the "old mining quarry". The discharge enters Rocky Creek, which flows, into the Chipola River. (See Attached Location Map)

According to the Wastewater Application Form 2F which was submitted in support of the permit renewal in February 1998, storm water runoff from the agricultural lime storage area east of the administrative building sheet flows into Sedimentation Basin #4 to Sedimentation Basin #5 which in turn discharges to the "old mining quarry". The discharge from the "old mining quarry" was not included in the application.

Samples for pH and turbidity were taken from the "old mining discharge". The results were as follows: pH: 8.48 su
Turbidity: 6.5 NTU.

Violations:

Chapter 62-620.610 (2) FAC and FDEP Permit # FL0101192-001-IW3S General Permit Condition #2:

"This permit is valid only for the specific processes and operations applied for and indicated in the approved drawings or exhibits. Any unauthorized deviations from the approved drawings, exhibits, specifications or conditions of this permit constitutes grounds for revocation and enforcement action by the Department.

Chapter 62-610 (22) FAC and FDEP Permit # FL0101192-001-IW3S General Permit Condition #22:

"Bypass is prohibited, and the Department may take enforcement action against a permittee for bypass....."

11. *RESIDUALS MANAGEMENT*: Not Applicable.

12. *GROUNDWATER*: Not Evaluated.

OTHER